

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE OF PAGES 1 32	
2. AMENDMENT/MODIFICATION NO. 0001		3. EFFECTIVE DATE 14-Mar-2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO.(If applicable)	
6. ISSUED BY NAVAL FACILITIES ENGINEERING SYS COMMAND NAVAL FACILITIES ENGINEERING SYS COMMAND 1314 HARWOOD STREET SE WASHINGTON DC DC 20374		CODE N40080		7. ADMINISTERED BY (If other than item 6) See Item 6			
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				X		9A. AMENDMENT OF SOLICITATION NO. N4008025R9500	
				X		9B. DATED (SEE ITEM 11) 13-Mar-2025	
						10A. MOD. OF CONTRACT/ORDER NO.	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☐ is extended, ☒ is not extended. Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) The purpose of this amendment is to provide revisions to the solicitation. See Continuation Page.							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR _____ (Signature of person authorized to sign)		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA BY _____ (Signature of Contracting Officer)		16C. DATE SIGNED 14-Mar-2025	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION SF 30 - BLOCK 14 CONTINUATION PAGE (SF 30)

The following have been added by full text:

0001

Amendment 0001

N40080-25-R-9500- Design-Build (DB)/Design-Bid-Build (DBB) Indefinite-Delivery/Indefinite-Quantity (IDIQ) Multiple Award Construction Contract (MACC) for Large Scale U.S. Military Projects, Locations in Washington D.C., Maryland, and Virginia

This purpose of this amendment is to provide:

- 1.Revised SF1442 Effective Date
- 2.Added SF1442 Box 13: Due Date 15 April 2025 @ 1400 PM Local Time
- 3.Revised Instructions to Proposers Section 00 21 00 - Instructions
- 4.Revised Clauses
- 5.Updated General Requirements Wage Determination
6. Attachments H, I, and J will be issued via subsequent amendment.
7. Site Visit details will be issued via subsequent amendment

SECTION 00 10 00 - SOLICITATION

The required response date/time 15-Apr-2025 02:00 PM has been added.

The solicitation issue date has changed from 12-Mar-2025 to 13-Mar-2025.

SECTION 00 21 00 - INSTRUCTIONS

The following have been modified:

INSTRUCTIONS TO PROPOSERS

All questions shall be submitted electronically using the Pre Proposal Inquiry (PPI) form, provided as Attachment B. The Point of Contact (POC) for inquiries are: Molly Lawson at molly.e.lawson.civ@us.navy.mil and vivienne.e.moore.civ@us.navy.mil. PPIs are due no later than three weeks after solicitation effective date.

TABLE OF CONTENTS

1. GENERAL**1.1 NOTICE TO OFFERORS****1.2 GENERAL OVERVIEW OF PROCUREMENT PROCESS****1.3 GENERAL OVERVIEW OF CONTRACT****2. GENERAL OVERVIEW OF THE SEED PROJECT****3. BASIS FOR AWARD****4. EVALUATION FACTORS FOR AWARD**

5. PROPOSAL REQUIREMENTS**5.1 PRE-PROPOSAL CONFERENCE AND SITE VISIT****5.2 PROPOSAL SUBMISSION INSTRUCTIONS****5.3 PRE-PROPOSAL INQUIRIES (PPI)****5.4 CONTRACT OPPORTUNITIES (SAM.GOV)****5.5 INCORPORATION OF TECHNICAL PROPOSALS****6. ATTACHMENTS****1. GENERAL****1.1 NOTICE TO OFFERORS**

1.1.1 THIS SOLICITATION IS BEING ISSUED AS UNRESTRICTED FOR FULL AND OPEN COMPETITION. THE NAICS CODE FOR THIS PROCUREMENT IS 236220 AND THE SIZE STANDARD IS \$45M.

1.1.2 1.1.2 Naval Facilities Engineering Systems Command (NAVFACSYSCOM) Washington plans to provide a Firm-Fixed-Price (FFP), Indefinite-Delivery/Indefinite-Quantity (IDIQ) Multiple Award Construction Contract (MACC) for United States (U.S.) military construction and other large scale projects. This MACC contract will be designed to provide construction services that support the U.S. Navy, U.S. Marine Corps, U.S. Air Force and other supported Command Tenant mission needs within the NAVFAC Washington Area of Operations (AO) primarily for locations at military installations within Washington, D.C., Maryland, and Virginia.

1.2 GENERAL OVERVIEW OF PROCUREMENT PROCESS

1.2.1 This solicitation is formatted as a Request for Proposal (RFP) in accordance with the requirements designated by sections of the FAR 15.203. This method permits evaluation of proposals based on price competition, technical merit and other factors; permits impartial and comprehensive evaluation of Offerors' proposals; permits discussions if necessary; and ensures selection of the source whose performance provides the best value to the Government. This acquisition will be solicited as a competitively negotiated procurement.

1.2.2 OFFERORS ARE ADVISED THAT AWARD MAY BE MADE WITHOUT DISCUSSION OR ANY CONTACT CONCERNING THE PROPOSALS RECEIVED. Therefore, proposals should be submitted initially on the most favorable price and technical terms. Offerors should not assume that they will be contacted or afforded an opportunity to qualify, discuss, or revise their proposals. However, the Government reserves the right to clarify certain aspects of proposals or conduct discussions providing an opportunity for the Offeror to revise its proposal. The Government reserves the right to reject any or all proposals at any time prior to award; to negotiate with any or all Offerors; to award the contracts to other than the Offeror submitting the lowest total price; to award to other than the Offeror submitting the highest technically rated proposal; and to award to the Offeror submitting the proposal determined by the Government to be the most advantageous (best value) to the Government.

1.3 GENERAL OVERVIEW OF CONTRACT

1.3.1. This acquisition will result in the award of approximately nine total, Firm-Fixed-Price (FFP) Indefinite-Delivery/Indefinite-Quantity (IDIQ), Design-Build/Design-Bid-Build Multiple (DB/DBB) Award Construction Contracts (MACCs), of which approximately three contracts are intended to be reserved to responsible small business firms. The contracts will provide large general construction services for projects primarily in the NAVFAC Washington's area of operations (AO). The Government intends to award approximately nine contracts resulting from this solicitation to the responsible Offerors whose proposals represent the best value after evaluation in accordance with the factors in the solicitation.

1.3.2. Construction projects to be performed under this MACC will primarily consist of general building type projects and may be either DBB or DB general construction projects which include, but are not limited to, new construction, demolition, repair, alteration, and/or renovation of buildings, systems and infrastructure and may include civil, structural, mechanical, electrical, fire protection, and communication systems. Types of facilities include administrative, industrial, maintenance, warehouses, hangars, communications, personnel support,

recreation, lodging, dormitory, medical, training, ranges, roads, etc. in support of Naval Facilities Engineering Systems Command, Washington Area of Operations (AO). Lead or asbestos abatement may be required in accomplishment of the work. Work in explosive facilities and/or sites may be required. Construction projects to be performed under this MACC will require the ability to manage multiple task orders concurrently across the NAVFAC Washington AO.

1.3.3 The aggregate value of all awarded contracts when combined will not exceed the \$8,000,000,000 over the life of the contract which spans an eight-year ordering period; to include a two-year base period with two additional, three-year option periods, if exercised, for a total 96 months. The completion date for the IDIQ contracts is one year from the date of the contract award with a two three-year option periods not to exceed 96 months. Projects for the MACC have an estimated construction cost between \$15,000,000 and \$1,000,000,000; however, smaller and larger dollar value projects may be considered at the discretion of the Contracting Officer. At the Government's discretion, Construction projects with smaller magnitudes may be solicited with preference to the small business reserve pool under this IDIQ, if applicable. There are minimum guarantees per contract with no yearly or per contractor limit, only the total eight-year maximum of \$8,000,000,000. A minimum guarantee of \$10,000 award amount will be provided to each successful offeror that covers the full term of the contract, including all option years. This minimum guarantee will be obligated as a task order to each awardee, then it will be de-obligated, at the point the offeror has received their first task order contract award. Individual project task orders will be established to meet customer requirements with independent completion dates and liquidated damages, if required.

1.3.4 After award of the initial contracts and "seed" project, the successful IDIQ contractors will compete for future task orders based on best value, using the tradeoff process or lowest price technically acceptable (to include lowest price). Only the successful IDIQ contractors will compete for task orders. In accordance with (IAW) FAR 16.505(b)(2)(i)(F), should an IDIQ contractor with a guaranteed minimum be unable to competitively secure a task order to meet the \$10,000 minimum guarantee, the Government reserves the right to negotiate a task order directly with that contractor.

1.3.5 The intent of this contract is that all IDIQ Contractors participate in pre-proposal conferences and site-visits and submit proposals on each task order. Contract awardees will be expected to submit a proposal for all Task Order Requests for Proposal (RFP) received from the Government. However, in the event a MACC awardee is unable to submit a proposal on a particular RFP, the contractor is required to notify, in writing, the Contracting Officer who issued the RFP and the ACO for the basic contract within five working days from receipt of the RFP. A MACC awardee can only elect to withdraw from submitting a proposal on three task order RFPs during the course of each year of the contract (Base plus two options). Additional withdrawal requests, in excess of three per year, may result in the Government choosing not to exercise remaining option terms.

1.3.6 Each task order will contain project specific evaluation factors that will vary depending on the unique requirements for each task order. Additionally, each task order will cite a specific completion date and associated liquidated damages. The selected contractor(s) will be responsible of all labor, supervision, engineering, design, materials, equipment, tools, parts, supplies, and transportation requirements to perform all the services described in the drawings and specifications provided for each individual project.

1.3.7 Contractor Performance Information: Contractor's performance will be evaluated using the respective contractor performance evaluation report located on the Contractor Performance Assessment Reporting System (CPARS) website <http://www.cpars.gov/>. Prior to commencement of work the contractor is required to provide the Government with the name, phone number and e-mail address of the "Contractor's Representative(s)" that will be responsible for receipt and review of draft performance evaluations prepared by the Government in the appropriate system. It is the contractor's responsibility to keep this contact information current.

2. GENERAL OVERVIEW OF THE SEED PROJECT

2.1 The initial (seed project) to be awarded as the first task order along with the basic contract will be the P-691 DBB project for an Aircraft Development and Maintenance Facility located at Naval Air Station, Patuxent River, MD. The project will provide a high-bay, steel-frame hangar on concrete pile and grade-beam foundation with a

reinforced concrete slab, built-up roofing over insulated structural metal deck, and steel truss framing. The project includes aircraft parking apron, hangar access apron, and paved shoulders. The hangar complex will support research, development, testing, and evaluation of a new aircraft platform.

* Solicitation Section 01 00 00 includes the General Requirements for the seed project.

3. BASIS FOR AWARD

3.1 The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract(s); to negotiate with Offerors in the competitive range; and to award the contract(s) to the Offeror(s) submitting the proposal(s) determined to represent the best value—the proposal(s) most advantageous to the Government, cost/price and other factors considered.

3.2 The Government intends to evaluate proposals and award a contract without discussions with Offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

3.3 The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced Offeror or other than the highest technically rated Offeror.

3.4 All technical factors (Factors 1, 2, 4, 5 and 6) when combined are of equal importance **to each other** and, when combined, are of equal importance to the performance confidence assessment (Factor 3 - Past Performance) rating; and all technical factors and the performance confidence assessment (Past Performance) rating, when combined are approximately equal to price.

4. EVALUATION FACTORS FOR AWARD

4.1. The solicitation requires the evaluation of *price* and the following non-cost/price factors:

- Factor 1 – Management Approach
- Factor 2 – Corporate Experience
- Factor 3 – Past Performance
- Factor 4 – Safety
- Factor 5 – Small Business Utilization and Participation
- Factor 6 – Technical Solution

The distinction between corporate experience and past performance is corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

4.2 The relative order of importance of the non-cost/price evaluation factors is the technical factors (Factors 1, 2, 4, 5 and 6) are of equal importance to each other respectively, and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment (Factor 3). Factor 1 (Management Approach) will be rated as either Acceptable or Unacceptable. When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-cost/price evaluation factors) are approximately equal to price.

The importance of price will increase if the Offerors' non-cost/price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-cost/price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered. A rating of Unacceptable in any factor will result in an Overall Technical Rating of Unacceptable, and is ineligible for award.

4.3 Basis of Evaluation and Submittal Requirements for Each Factor.

PRICE PROPOSAL PACKAGE:

(i) Solicitation Submittal Requirements:

Price shall be submitted on the Price Proposal Form included in the solicitation. The Offeror shall submit one electronic copy per the instructions provided in the solicitation submittal requirements identified in the SF1442 Instructions to Offerors, Section 5. The Price and Non-cost/price Factors shall be submitted in separate files and submitted in Portable Document Format (PDF). Price information included in the non-price/technical proposal will not be considered. Likewise, non-price/technical information included in the price proposal will not be considered.

The Offeror is required to submit a complete Price Proposal Form that includes completion of all contract line items numbers (CLINs) for the seed project as described. Pricing information is not required to be completed under Section 00 10 00 – Solicitation Contract Form in the SF 1442. All required proposal documents shall be submitted in accordance with FAR 15.208.

(ii) Executed SF1442

Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, United Entity Identifier (UEI), CAGE code, Employer Identification Number (EIN), and Federal Tax ID number, Point of Contract (POC), POC phone number, and email address, with its proposal. If a JV, this information should be provided for each member.

(ii) Completed Price Proposal Form for the Seed Project

Bid bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the seed project or \$3M, whichever amount is less. The bid bond shall be in the name of the Offeror identified on the SF1442. In addition, the Offeror shall provide a letter from its bonding company confirming that it has a single award bonding capacity of at least \$250,000,000. Firms are not required to demonstrate a minimum aggregate bonding capacity. However, contractors must be capable of securing bonding for multiple large-scale projects concurrently, as RFPs and task orders may be issued for several projects simultaneously. Offeror proposals that fail to provide evidence of a single bonding capacity of at least \$250,000,000 may be considered non-responsive and thus be excluded from further price or technical evaluation as ineligible for award.

NOTE: A small business joint venture Offeror or teaming agreement as defined in paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) shall submit bonding company letters from each of the respective partners as identified on the SF1442, however the sum of the bonding letters shall meet the minimum \$250,000,000 per project.

(ii) SAM Registration

Offeror shall ensure current registration on the SAM Website, www.sam.gov, including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00600 of the RFP is not provided in SAM, include the representation or

certification in your price proposal. Proposals submitted by Offerors who do not have an active SAM registration at the time of proposal receipt shall not be considered.

(iii) FAPIIS Certification

Offeror shall ensure Federal Awardee Performance and Integrity Information System (FAPIIS) Certification as required by FAR 52.209-7, Information Regarding Responsibility Matters.

(iv) VETS-4212 Registration

Confirmation of filing of Veterans' Employment and Training (VETS-4212) for the 2023/2024 filing cycle. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>, if the Offeror is required to submit. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

(v) Joint Venture (JV) Agreement (if applicable)

If the Offeror is a JV, clearly submit the name of each entity that comprises the JV (Offeror). For each entity, provide the complete name of the firm, address of the entity, Unique Entity Identifier (UEI), CAGE code, Point of Contact (POC), POC phone number, and POC email address. Provide a copy of the signed JV agreement.

NOTE: A small business joint venture Offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

- (A) Small business;
- (B) Service-disabled veteran-owned small business;
- (C) Women-owned small business (WOSB) under the WOSB Program;
- (D) Economically disadvantaged women-owned small business under the WOSB Program; or
- (E) Historically underutilized business zone small business.

SMALL BUSINESS SUBCONTRACTING PLAN INFORMATION – reference FAR 52.219-9 Alt II and DFARS 252.219-7003).

In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) based on the proposed MACC NTE Value utilizing the template provided as Attachment E within their price proposal. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSEB, but reviewed by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and/or accepted within the time specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars. The SBSP shall be consistent with the commitments offered in the Small Business Utilization and Participation Factor (Attachment G). In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

Program	Prime	Subcontracting
Small Business (SB)	59.30%	40%
Historically Underutilized Business Zone Small Business (HUB Zone)	6.85%	3%
Service-Disabled Veteran Owned (SDVOSB)	4.90%	5%
Small-Disadvantaged Business (SDB)	44.50%	5%
Woman-Owned (WOSB)	4.60%	9%

Please note that SBSP goals and the participation requirements provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation requirements within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products/services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the Offeror must be determined responsible in accordance with FAR Part 9 General Standards. Contractors are to provide the following to support determination:

1. One signed bank reference demonstrating adequate financial resources. If Offeror's firm has a line of credit – provide information on how many figures Offeror can borrow against the line of credit (i.e. medium 6 figures – exact line of credit is not required).
2. The Offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the Offeror.

Offerors may provide proprietary financial statements **only** via email to molly.e.lawson.civ@us.navy.mil and vivienne.e.moore.civ@us.navy.mil in lieu of submitting within the system. Additional information included with financial statements will not be considered.

3. Description of Offeror's facilities and equipment.

(ii) Basis of Evaluation:

The Government will evaluate price based on the total price for the seed project. Total price consists of the basic requirements and all option items. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

Non-Price Proposal Factors

i. Solicitation Submittal requirements

The Offeror shall submit one electronic copy per the instructions provided in the solicitation submittal requirements identified in the SF1442 Instructions to Offerors, Section 5. The Price and Non-Price Factors shall be submitted in separate files in a searchable Portable Document Format (PDF). Non-price information included in the price proposal package will not be considered. Likewise, price information included in the non-price proposal will not be considered. All submissions shall include the following:

- Cover page with solicitation number
- Solicitation title
- Offeror name, address, phone number
- Offeror Unique Entity Identifier (UEI)
- CAGE Code
- Employer Identification Number (EIN)
- Federal Tax ID Number
- Point of Contact (POC), POC phone number, and POC email address
- Note: If proposing as a Joint-Venture (JV), please submit the POC, UEI, and CAGE Code for each JV partner.
- Text pages 8 ½ x 11 format, 11-point font Arial

FACTOR 1 – Management Approach

(i) Solicitation Submittal Requirements:

- (1) The Offeror shall submit a narrative plan not to exceed five pages detailing its Management Plan. If submitting a proposal as a JV, the JV Offeror shall submit a narrative detailing its Management Plan for the joint venture. . Information beyond the five-page limit will not be considered, with the exception of an organizational chart which is not included in the page limitation. The Offeror narrative plan shall include:

a. Organizational Chart

The Offeror shall clearly identify the lines of leadership, authority, between the proposed primary construction firm and primary design firm(s) for this contract. (The organizational chart is not part of the page limitation). If the experience of an entity is used for Factor 2, that entity must be named in this organizational structure.

b. Narrative: The narrative shall address, at a minimum, the following topics:

○ Organizational Structure

Provide a narrative describing the proposed primary construction firms and primary design firms for this contract and the rationale for proposing this arrangement. The Offeror shall clearly state the roles, responsibilities, and contractual relationships between the various firms that will perform under this contract (See FAR Subpart 9.6). If the experience of an entity is used for Factor 2, that entity must be named in this organizational structure.

○ Execution Strategy

The Offeror shall clearly state their strategy for successful execution of work awarded under resulting contract, addressing at a minimum:

- managing multiple concurrent projects;
- managing and coordinating communication with all subcontractors and all the stakeholders;
- managing project schedule and cost; and

- managing the geographic coverage of the contract requirements.

- Scope Plan

The Offeror shall clearly state their plan for accomplishing the varied scopes of work (addressing both Design-Bid-Build and Design-Build (fully designed)) for general construction projects under this MACC.

- (2) In addition the Offeror shall submit a signed copy of their teaming agreement: e.g. a joint venture (JV) agreement, partnership agreement, teaming agreement, and/or letter of commitment. The agreement shall be signed by each member of the Offeror's team identified above (e.g., JV member, partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.). Letters of commitment for the Designer(s) of Record (DOR(s)) shall be addressed from the DOR to the Offeror. The DOR's letter of commitment shall be signed by the DOR's signing authority. If the Offeror's proposed DOR is a JV, the Offeror shall submit a JV agreement or a letter of commitment from the applicable designers of the JV. Failure to do so may deem your proposal Unacceptable. Copies of these documents are not included in the page limitation.

(ii) Basis of Evaluation:

This factor will be rated on an Acceptable or Unacceptable basis.

The assessment of the Offeror's management approach will be used as a means to review the organizational structure and roles and responsibilities proposed by the Offeror. The narrative will be evaluated to determine whether the Offeror's management approach will contribute to successful performance for this contract. Failure to address all elements set out above or narratives providing an insufficient level of detail will result in a rating of UNACCEPTABLE and will render the proposal ineligible for award and will not be evaluated further.

FACTOR 2 – Corporate Experience

(i) Solicitation Submittal Requirements:

This factor consists of an evaluation of the Offeror's Construction Experience and it's proposed Designer(s) of Record's Design Experience. Offerors shall submit the following information:

(1) Construction Experience:

The Offeror shall submit a maximum of four relevant construction projects for the Offeror as the prime contractor that best demonstrate your experience as a prime contractor on relevant projects (similar in size, scope, complexity and recency to the RFP. For purposes of this evaluation, a recent, relevant project is further defined as

Size: A final construction cost of \$50,000,000 or greater. Projects submitted below this stated dollar range will not be considered as relevant. At least one project must have a final construction cost of \$100,000,000 or greater.

Scope/Complexity: Individual projects shall demonstrate experience with at least one of the following:

- New construction of a building; OR
- Interior or Exterior renovation of a building that includes repairs to at least two building systems and/or infrastructures (e.g. architecture, HVAC, electrical, plumbing, fire protection) in one project.

Note: Projects submitted that only include horizontal or civil site work will not be considered relevant (e.g. roadways, site grading, etc.)

Additionally, submitted relevant projects shall, cumulatively, demonstrate the following experience:

- Experience with new construction (at least one project);
- Experience with renovation (at least one project);
- Experience with design-build construction (at least one project);
- Experience with design-bid-build construction (at least one project);
- Experience with a final construction cost of \$100,000,000 or greater (at least one project).

It is critical that submissions ensure that the project description clearly identifies whether the project involved new construction or renovation, addresses how the project meets the scope and complexity requirements as delineated above, provides the final construction cost and discusses interactions with regulatory agencies (e.g. environmental, historic preservation, etc.). The absence of any such information will result in the Project being considered Not Relevant, which could result in a rating of UNACCEPTABLE for this Factor. The failure to demonstrate experience with at least one project that has a \$100,000,000 or greater final construction cost which also meets the scope and complexity requirements will result in a rating of UNACCEPTABLE for this Factor.

Recency: Projects submitted for Construction Experience shall have been completed within the previous 10 years of the date of RFP Issuance. Projects submitted with completion dates on or after the RFP Issuance date will be considered Not Relevant, regardless if the Government enters into discussions.

Offerors shall have acted as the prime contractor on submitted projects. An Offeror's experience performing as a subcontractor will not be considered, nor will experience of companies proposed to work as subcontractors on the resulting contract, unless otherwise permitted per 13 CFR 125.11.

A project is defined as a construction project performed under a single task order or stand-alone contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a single task order as a project. The submission of a multiple award and/or indefinite delivery/indefinite quantity type contract as a whole will be considered Not Relevant.

The attached Construction Experience Project Data Sheet (Attachment C) is MANDATORY and SHALL be used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed three single-sided pages.

JOINT VENTURES:

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for individual Joint Venture partners. Experience submitted for individual Joint Venture partners in which the company was a partner in a different Joint Venture entity may be submitted to demonstrate relevant project experience. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the Offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. Offerors who fail to submit experience for all JV member partners may be considered less favorably. Offerors are still limited to a total of four projects combined. The JV member proposed for this contract shall specifically address field work performed by that JV member including field staffing and direct field work oversight. The JV member proposed for this contract shall also address home office management performed by that JV member including the number/percentage of employees provided for the overall contract by the JV members as well as the overall percentage of work performed by the JV member. Offerors proposing as a JV shall submit the fully executed signed JV agreement.

SINGLE CORPORATE ENTITY:

If the Offeror is proposing as a single corporate entity (i.e. not as a Joint Venture), the Offeror may submit relevant project experience it performed as a partner in a previous Joint Venture. The Offeror shall clearly describe the work

it performed as the JV member in relation to the size, scope, and complexity requirements above. Offerors are still limited to four projects.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, management, equipment that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract). In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract.

Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. If meaningful involvement is not demonstrated, experience of the affiliate/subsidiary/parent/LLC/LTD firm will not be considered.

(2) Design Experience:

Both design-build and design-bid-build projects may be contemplated under this MACC. Therefore, the Offeror is required to identify the design firm(s) (Architect/Engineering firm) to be utilized as Designer of Record (DOR(s)) on anticipated future projects. Provide the full name(s) of the firm, address, UEI number, and CAGE code. The designated firm(s) will be required to be utilized as the DOR(s) on future design-build task orders under the resulting MACC, unless a substitution is approved by the Contracting Officer for the proposed task order. For the duration of the contract period, the number of DOR firm(s) proposed and utilized by the offeror may not exceed two. The Offeror must provide supporting documentation (such as a signed joint venture agreement, partnership agreement, teaming agreement, or letter of commitment on the proposed DOR's letterhead) demonstrating agreement by the proposed design firm to perform as DOR for the duration of this MACC under Factor 1.

The Offeror shall submit a maximum of four relevant design projects performed by the proposed Designer of Record that best demonstrates design experience with projects relevant to this solicitation (similar in size, scope, complexity and recency) to the projects contemplated for this MACC. For purposes of this evaluation, a relevant project is further defined as:

Size: A final construction cost of \$50,000,000 or greater. Projects submitted below this stated dollar range will not be considered as relevant. At least one project must have a final construction cost of \$100,000,000 or greater.

Scope/Complexity: Individual projects shall demonstrate experience with at least one of the following:

- New construction of a building;
- Interior or Exterior renovation of a building that includes repairs to at least two building systems and/or infrastructures (e.g. architecture, HVAC, electrical, plumbing, fire protection) in one project.

Note: Projects submitted that only include horizontal or civil site work will not be considered relevant (e.g. roadways, site grading, etc.).

Additionally, submitted relevant projects shall, cumulatively, demonstrate the following characteristics:

- Experience with new construction (at least one project);
- Experience with renovation (at least one project);
- Experience with design-build construction (at least one project);
- Experience with a final construction cost of at least \$100,000,000 (at least one project).

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this MACC (i.e., unique features, area, construction methods). In addition, the description should also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third Party Certification program. Ensure that the project description clearly identifies whether the project involved new construction or renovation, addresses how the project meets the scope and complexity requirements as delineated above, and provides the final construction cost. The absence of any such information will result in the Project being considered Not Relevant, which could result in a rating of UNACCEPTABLE for this Factor. The failure to demonstrate experience with at least one project that has a \$100,000,000 or greater final construction cost which also meets the scope and complexity requirements will result in a rating of UNACCEPTABLE for this Factor.

Recency: A project submitted under design experience will meet the recency requirement if (a) the construction effort was completed within 10 years immediately preceding the RFP issuance date, regardless of the design completion date, OR (b) the construction effort is ongoing, but the design completion date was reached within the 10 years immediately preceding the RFP issuance date. Each relevant completion date shall be clearly stated on the Construction & Design Experience Project Data Sheet. Projects outside of this range shall be considered Not Relevant.

A project is defined as a complete design effort performed under a single task order or standalone contract/subcontract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project. The submission of a multiple award and/or indefinite delivery/indefinite quantity type contract as a whole will be considered Not Relevant.

The attached Construction and Design Experience Project Data Sheet (Attachment C) is MANDATORY and SHALL be used to submit project information. If the same project is being used to demonstrate construction and design experience, submit separate Project Data Sheets for construction and design. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed three single-sided pages. Only the applicable documentation on submitted projects that were validated and/or certified through a Sustainable Third Party Certification Program Information may be included and does not count towards this factor page count; however any additional documentation shall not be included and will not be considered. Design-Build Design projects must include the Design Completion Date. Absence of this information will result in the project being deemed as NOT RELEVANT.

If the design firm is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. If meaningful involvement is not demonstrated, experience of the affiliate/subsidiary/parent firm will not be considered, and will be deemed Not Relevant.

The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project.

The proposal shall also describe specific roles of the affiliate/subsidiary/ parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Failure to submit this information may result in a lower rating.

The Offeror may utilize experience of a design subcontractor performed as the Designer of Record in order to demonstrate design experience under this evaluation factor. The Offeror must provide a supporting joint venture agreement, partnership agreement, teaming agreement, or letter of commitment on letterhead (from and signed by the proposed design firm) and an explanation of the meaningful involvement for the design subcontractor. If the agreement/letter is not provided or meaningful involvement is not demonstrated, experience of the proposed

designer will not be considered, and will be deemed Not Relevant. Offerors proposing multiple design firms should submit relevant project experience for all design firms. Failure to do so may result in a lower rating. Offerors are still limited to a total of four projects combined.

(ii) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated experience and depth of experience in performing relevant construction and design projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review four projects for construction and four projects for design experience. Any projects submitted in excess of this will not be considered.

Submission of relevant projects demonstrating one or more of the following characteristics MAY be considered more favorably:

- Design-Build Projects where the Offeror and the proposed design firm(s) have previously worked together.
- Projects demonstrating the Offeror's and/or proposed design firm(s) ability to perform multiple (minimum of three) projects simultaneously.
- Depth of relevant projects with construction costs in excess of \$100,000,000 may be considered more favorably.

FACTOR 3 – Past Performance

The assessment of past performance will be used as a means of evaluating the probability to successfully meet the requirements of the RFP.

ATTACHMENT(S):

ATTACHMENT D: Past Performance Questionnaire

(i) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for construction experience. If a completed AE Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 2 for design experience. If there is not a completed CPARS evaluation then submit Past Performance Questionnaires (Attachment B) for each project included in Factor 2 for both Construction Experience and Design Experience. The Offeror should provide completed Past Performance Questionnaires (PPQ) in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Molly Lawson, at molly.e.lawson.civ@us.navy.mil and Vivienne Moore, at Vivienne.e.moore.civ@us.navy.mil

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 2 – Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor.

Performance award or additional information submitted will not be considered.

(ii) Basis of Evaluation:

This evaluation will consider how well the Offeror's team performed on relevant projects submitted under Factor 2 – Experience and may also consider past performance on other projects currently documented in known sources.

The Government will consider the recency and relevance of the information, the source of the information, context of the data, and general trends in the Contractor's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's team's past performance will be used as a means of evaluating the Offeror's team's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will receive a NEUTRAL Confidence rating.

Past performance ratings of "Substantial Confidence" or "Satisfactory Confidence" hold more value than a "Neutral Confidence" rating and will be considered more favorably in the evaluation of past performance.

FACTOR 4 - Safety

(i) Solicitation Submittal Requirements:

The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or joint venture, the Offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors

1. DART Rate: Submit five (5) previous complete calendar years' [CY2024, CY2023, CY2022, CY2021, and CY2020] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

NOTE: If proposing as a JV, DART is required for both the JV firm and each JV Member. Failure to include this information will result in a rating of UNACCEPTABLE for this factor.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

$$\text{DART RATE} = \frac{\text{Number of DART Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2024, 2023, 2022, 2021, and 2020] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why.

Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

NOTE: If proposing as a JV, TCR is required for both the JV firm and each JV Member. Failure to include this information will result in a rating of UNACCEPTABLE for this factor.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work, or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

$$TCR\ RATE = \frac{\text{Number of TCR Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describe the evaluation process used to select potential subcontractors.

c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the Offeror's own in-house workforce).

d. The Technical Approach to Safety narrative shall not exceed two pages and shall be Arial size 11 font. Information provided that exceeds the two-page limit will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(ii) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices, taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without an explanation is considered a deficiency. Note: An Offeror submitting "0.00" is indicating no incidents to report. Offerors who do not have a DART rating shall affirmatively state so and provide explanation.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.

c. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk (EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the DART rate to the level of risk:

<u>Risk</u>	<u>DART Rate</u>
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High Risk	Greater than 4.0

2. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

a. Missing data without an explanation is considered a deficiency. Note: An Offeror submitting “0.00” is indicating no incidents to report and requires no explanation. Offerors who do not have a TCR rating shall affirmatively state so and provide explanation.

b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.

c. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk (EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

d. This chart correlates the TCR rate to the level of risk:

<u>Risk</u>	<u>TCR Rate</u>
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

3. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

a. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describes a methodical process of evaluating subcontractor’s safety performance in their selection process.

c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

d. The Technical Approach to Safety narrative shall not exceed two pages and shall be size 11 font (minimum). Arial font is recommended but others may be used if legible. Information provided that exceeds the two-page limit may not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC’s Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

Failure to address any of the required elements for the DART or TCR ratings, or narrative will result in (a) deficiency(ies).

FACTOR 5 - Small Business Utilization and Participation

It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUB Zone SB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance.

This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The Offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

ATTACHMENT(S):

Attachment F: Historical Small Business Utilization

Attachment G: Small Business Participation Commitment Document (SBPCD)

(i) Solicitation Submittal Requirements:

1. All Offerors (large, non-profits, AND small businesses) shall use **Attachment F** (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under Factor 2, Experience, shall be included on Attachment F. Failure to include each project submitted under Factor 2, Experience, on Attachment F, or a meaningful description of why the ISR is missing, or the failure to fully complete Attachment F for each project will result in a deficiency. Information provided in a different format and/or on a form created by the Offeror will not be evaluated. Attachments or addendums to Attachment F will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete Attachment F are included at the beginning of the attachment.

2. All Offerors (large, non-profits, AND small businesses) shall use **Attachment G** (Small Business Participation Commitment Document (SBPCD)) to submit the following required information for evaluation of this factor:

- To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUB Zone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protégé agreement, letter of commitment, etc.) with each subcontractor.
 - If subcontractors are not identified by name, Offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, Offerors shall provide an explanation and rationale on the ability to achieve the proposed participation. (See Attachment G, paragraph 5)
 - If a LB Offeror does not intend to subcontract, provide a detailed explanation why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See Attachment G, paragraph 6)
- To demonstrate maximum practicable participation of small businesses, identify (in terms of dollar value and percentage of the total contract value) the Offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is 20%. Offerors who are not able to meet the minimum total small business participation requirement of 20% (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.

- Information provided in a different format and/or on a form created by the Offeror will not be evaluated. Attachments or addendums to Attachment G will not be evaluated.
- Large business Offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.
- Small business Offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

(ii) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

1. The extent to which the Offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUB Zone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for Factor 2, Experience, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the Offeror.
2. The extent to which the Offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUB Zone SB, VOSB, and SDVOSB in the performance of this contract within the SBPCD.
 - The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed 20% of the total contract value, unless the Offeror provides a reasonable and well-documented explanation for why the minimum 20% small business participation requirement cannot be achieved.
 - Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
 - Proposing less than 20% total small business participation requirement will result in a deficiency.
 - Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a deficiency.
 - The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUB Zone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protégé agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.
 - The Offeror may receive a deficiency if firm commitments with subcontractors are not provided and the Offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
 - The Offeror may be rated lower, if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance. (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract.).

FACTOR 6 - Technical Solution**(i) Solicitation Submittal Requirements:**

Offeror shall submit a narrative detailing the first task order seed project requirements solution. The narrative should describe how the Offeror intends to successfully complete the seed project. The narrative plan shall not exceed three pages. Information beyond the four-page limit will not be considered. The narrative shall, at a minimum, address the following topics:

For the **Seed Project**: P-691, Aircraft Development and Maintenance Facility (Phase II), Naval Air Station Patuxent (PAX) River, Maryland

1. Provide a narrative work plan addressing:
 - the major elements of work
 - long lead Items
 - project specific risks and
 - potential mitigations
2. Provide a Critical Path Schedule illustrating the Offeror's ability to achieve or improve on the construction duration of 802 days starting on December 31, 2025. Identify key milestones for sequence of work as required to complete construction. The schedule shall demonstrate an understanding of the work to include the base CLIN and all options, a logical sequence of events to accomplish the work, and be sufficiently detailed so as to identify all of the major milestones.
 - a. Important: The schedule shall be based on a contract award date of 31 Dec 2025, but this date is provided for evaluation purposes only and not an anticipated/planned award date.

(ii) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the task order requirement objectives of this acquisition. Offerors providing greater detail and demonstrating a greater level of understanding of the requirements may be considered more favorably.

5. PROPOSAL REQUIREMENTS**5.1 PRE-PROPOSAL CONFERENCE AND SITE VISIT**

See Section 01 00 00 – General Requirements – General Requirements, **Site Visit** for all information regarding the seed project site visit.

5.2 PROPOSAL SUBMISSION INSTRUCTIONS

5.2.1 In response to this request for proposal, the complete proposal shall include both the Price Proposal and the Non- Cost/Price Factors Proposal, submitted in accordance with the above Basis of Evaluation and Submittal Requirements for Each Factor and as follows:

Electronic Copies

Offerors shall submit electronic proposals (.pdf format) in response to this solicitation through the PIEE Solicitation Module. The PIEE Solicitation Module is designated as the Navy preferred method for submittal and exchange of time-sensitive documents. The installation designated for receipt is NAVFAC Washington, WNY, D.C. under Solicitation Number N40080-25-R-9500. Electronic proposal submissions should be no larger than 1.9 GB per file. Offerors shall ensure that the

Government has received the electronic proposal prior to the date and time specified. Mailed or hand-delivered submissions will not be accepted. Submissions received by email may not be accepted, unless otherwise determined acceptable by the Contracting Officer in accordance with the FAR.

PIEE Solicitation Vendor Access Instructions are provided via Attachment A. Offerors shall allow adequate time to upload files which may be slower for non-DoD users and to avoid other technical difficulties that may be encountered.

Offerors are advised to access PIEE and ensure appropriate registration in the solicitation module in advance of the proposal due date. Solicitation/PIEE technical difficulties encountered usually involve assistance of the Help Desk and are unable to be resolved by NAVFAC Washington. Help Desk inquiries are not time sensitive and thus may vary in response times.

Offerors are also responsible for submitting files in the format specified and consistent with requirements stated elsewhere in this solicitation. Files that cannot be opened, or are otherwise missing the required content, are the responsibility of the Offeror.

The PIEE system will record the date and time of package submittal. The date and time of package submittal recorded in PIEE shall govern the timeliness of any proposal submission, unless otherwise determined by the Contracting Officer.

5.2.2 The Offeror's proposal must include all data and information required and must be submitted in accordance with these instructions. The Offeror shall be compliant with the requirements as stated herein, for non-conformance may result in a proposal being rejected without further consideration. (ref: FAR 52.236-28)

Note: Under no circumstance is a firm permitted to submit more than one offer in response to this solicitation (e.g. single entity and joint venture).

5.2.3 PROPOSALS SUBMITTED IN RESPONSE TO THIS REQUEST FOR PROPOSAL SHALL BE RECEIVED NO LATER THAN THE DATE AND TIME SPECIFIED IN BLOCK 13A OF THE SF1442. Electronic Proposals not received by the time and date specified are subject to FAR 52.215-1 "Instruction to Offerors - Competitive Acquisitions" and may be rejected.

5.3 PRE-PROPOSAL INQUIRIES

All inquiries must be submitted in writing and received by the Contract Specialist no later than **21 days (three weeks) after solicitation effective date** unless otherwise specified. There is no guarantee that PPI's submitted after the cut-off date will be answered before the solicitation closes. Submit all questions to molly.e.lawson.civ@us.navy.mil.

Use of the PPI Log template is required. The PPI Log Template (Attachment B) can be found on Contract Opportunities under the Attachments section.

5.4 SAM.GOV OPPORTUNITIES (SAM)

Amendments will be posted directly to the Procurement Integrated Enterprise Environment (PIEE) and SAM. The drawings and specifications will be posted PIEE and on Sam under the Attachments section of this RFP. Additionally, other postings will be made to PIEE and Sam, such as the preproposal inquires (PPI) log, revised drawings, etc., under the Attachments section of the RFP. It is possible that postings to the Attachments section of Sam DO NOT generate an automated email to contractors. It is recommended contractors check the Sam listing periodically to see if additional

postings have been made. It is the contractor's responsibility to check Sam.Gov for all postings.

5.5 INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal, including revisions and amendments, made prior to contract award and a copy of which is in the possession of both parties, will be incorporated into this contract upon award by reference with the same force and effect as if set forth in full text. All contractor personnel shall meet or exceed the qualification standards, experience levels and trade background set forth in the technical proposal. In the event of an inconsistency between the provisions of this contract and the technical proposal, the inconsistency shall be resolved by giving precedence in the following order:

- (i) the contract (excluding the technical proposal), and then
- (ii) the technical proposal.

6. ATTACHMENTS:

Attachment A PEE Vendor Registration Instructions
Attachment B PPI Log
Attachment C Construction and Design Experience Project Data Sheet
Attachment D Past Performance Questionnaire
Attachment E Small Business Subcontracting Plan
Attachment F Historical SB Utilization
Attachment G Small Business Participation Commitment Document
Attachment H P-691 Price Proposal Form
Attachment I P-691 Specifications
Attachment J P-691 Drawings

All attachments will be provided under the Solicitation Number in the Attachments Section in Sam, Contract Opportunities.

Attachments H, I, and J will be provided via subsequent amendment.

SECTION 00 72 00 - GENERAL CONDITIONS

The following have been modified:

WAGE DETERMINATION

"General Decision Number: MD20250055 02/21/2025

Superseded General Decision Number: MD20240055

State: Maryland

Construction Type: Building

County: St Mary's County in Maryland.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: 	♦ Executive Order 14026 generally applies to the contract. ♦ The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. 	
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022: 	♦ Executive Order 13658 generally applies to the contract. ♦ The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours performing on that contract in 2025. 	

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number	Publication Date
0	01/03/2025
1	01/10/2025
2	01/24/2025
3	02/07/2025
4	02/21/2025

ASBE0024-004 10/01/2024

	Rates	Fringes
INSULATOR - MECHANICAL (Duct, Pipe & Mechanical System Insulation).....	\$ 40.77	20.17

BRDC0001-003 04/28/2024

	Rates	Fringes
STONE FINISHER.....	\$ 28.09	12.29

BRDC0001-004 04/28/2024

	Rates	Fringes
TILE FINISHER.....	\$ 28.09	12.29

BRDC0001-006 04/28/2024

	Rates	Fringes
TILE SETTER.....	\$ 33.41	13.94

BRDC0001-007 04/28/2024

	Rates	Fringes
MASON - STONE.....	\$ 44.30	20.92

CARP0251-006 05/01/2024

	Rates	Fringes
SOFT FLOOR LAYER (Includes Carpet, Vinyl and Resilient).....	\$ 34.12	14.64

CARP0474-001 05/01/2022

	Rates	Fringes
PILEDRIIVER PERSON.....	\$ 34.62	13.45

ELEC0026-002 06/05/2023

	Rates	Fringes
ELECTRICIAN.....	\$ 53.00	21.35

* ELEV0010-002 01/01/2025

	Rates	Fringes
ELEVATOR MECHANIC.....	\$ 57.16	38.435+a+b

a. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, Christmas Day and the Friday after Thanksgiving.

b. VACATIONS: Employer contributes 8% of basic hourly rate for 5 years or more of service; 6% of basic hourly rate for 6 months to 5 years of service as vacation pay credit.

ENGI0037-006 04/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR		
Bobcat/Skid Steer/Skid		
Loader.....	\$ 32.23	14.50
Bulldozer.....	\$ 34.18	14.50
Crane.....	\$ 38.74	14.50
Paver (Asphalt, Aggregate		
and Concrete).....	\$ 34.18	14.50
Roller.....	\$ 34.18	14.50

IRON0568-001 05/01/2024

	Rates	Fringes
IRONWORKER, REINFORCING.....	\$ 30.69	24.15

LABO0616-001 05/01/2023

	Rates	Fringes
LABORER (Pipelayer).....	\$ 23.24	22.10

LABO0710-001 04/01/2024

	Rates	Fringes
LABORER (Mason Tender - Brick)...	\$ 22.17	6.73

PAIN0051-002 06/01/2023

	Rates	Fringes
GLAZIER.....	\$ 34.76	13.85

PAIN0051-003 06/01/2023

	Rates	Fringes
DRYWALL FINISHER/TAPER.....	\$ 27.46	11.56

PAIN0051-006 06/01/2023

	Rates	Fringes
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PAINTER.....	\$ 27.46	11.56

PLUM0005-002 08/01/2024		
	Rates	Fringes
PLUMBER.....	\$ 51.25	22.46

PLUM0602-001 08/01/2024		
	Rates	Fringes
PIPEFITTER (Includes HVAC Pipe and Unit Installation).....	\$ 52.27	23.79

ROOF0030-003 07/01/2024		
	Rates	Fringes
ROOFER.....	\$ 34.76	14.91

SFMD0669-002 01/01/2025		
	Rates	Fringes
SPRINKLER FITTER.....	\$ 42.32	26.39

SHEE0100-005 11/01/2021		
	Rates	Fringes
SHEET METAL WORKER (HVAC Duct Installation Only).....	\$ 44.37	21.33

TEAM0639-002 06/01/2024		
	Rates	Fringes
TRUCK DRIVER (DUMP TRUCK).....	\$ 30.50	6.80

* UAVG-MD-0001 01/01/2025		
	Rates	Fringes
IRONWORKER, ORNAMENTAL.....	\$ 31.91	24.78

* UAVG-MD-0002 01/01/2025		
	Rates	Fringes
IRONWORKER, STRUCTURAL.....	\$ 31.83	24.73

* UAVG-MD-0003 01/01/2025		
	Rates	Fringes

SHEET METAL WORKER.....\$ 35.44 23.69

SUMD2023-012 05/30/2023

	Rates	Fringes
BRICKLAYER.....	\$ 29.32	10.51
CARPENTER, Includes Drywall Hanging, and Form Work.....	\$ 23.40	10.17
CEMENT MASON/CONCRETE FINISHER...	\$ 27.23	7.18
LABORER: Common or General.....	\$ 19.60	5.51
LABORER: Mason Tender - Cement/Concrete.....	\$ 19.56	5.77
OPERATOR: Backhoe/Excavator/Trackhoe.....	\$ 28.36	11.83
OPERATOR: Forklift.....	\$ 23.72	4.47
OPERATOR: Loader.....	\$ 27.75	11.64

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may

include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be

directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 15 calendar days of award (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 802 calendar days (seed project only). The time stated for completion shall include final cleanup of the premises.

Completion dates will be included in each subsequent task order.

(End of clause)

52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

SECTION 01 00 00 - GENERAL REQUIREMENTS

The following have been modified:

GENERAL REQUIREMENTS SEED PROJ

NAVFAC Solicitation No.: N4008025R9500

NAVFAC Specification Work Order No.: 1737036

NAVFAC Drawings Nos.: 13155733 - 13156017

Title: P691 Phase 2, Aircraft Development and Maintenance Facility, NAS PAX RIVER

Location of the Work: Naval Air Station, Patuxent River, Maryland

Description of Work: The project will provide a high-bay, steel-frame hangar on concrete pile and grade-beam foundation with a reinforced concrete slab, built-up roofing over insulated structural metal deck, and steel truss framing. The project includes aircraft parking apron, hangar access apron, and paved shoulders. The hangar complex will support research, development, testing, and evaluation of a new aircraft platform to replace the E-6B.

Proposal due date: Submit in accordance with section 5.2 Proposal Submission Instructions above.

Estimated Budget Amount or Price Range: In accordance with FAR 36.204 and DFARS 236.204, the magnitude of construction for the seed project is between \$100,000,000 and \$250,000,000.

Time for Completion: In accordance with FAR 52.211-10 Commencement, Prosecution, and Completion of Work, the Government desires completion of construction within **802** calendar days after award (includes 15 calendar days for submission and approval of bonds and insurance).

Wage Determination: Department of Labor (DoL) General Decision Number **MD20250055 02/21/2025** applies to this work. Should this wage determination be modified by DoL prior to award, the most current wage determination will be incorporated at the time of award.

Liquidated Damages: In accordance with FAR 52.211-12 Liquidated Damages – Construction, liquidated damages, at the time of award, will be based upon the liquidated damages for the base price, plus any option or combination of options exercised. If an option(s) is exercised within the timeframe allowed after award, the liquidated damages will be increased based upon the liquidated damages for that option.

Base plus all options: \$173,364.89 per Calendar Day

Utilities: Utilities: In accordance with FAR 52.236-14 Availability and Use of Utility Services, the Government shall make all reasonably required amounts of utilities available to the Contractor from existing outlets and supplies, as specified in the contract. Unless otherwise provided in the contract, the amount of each utility service consumed shall be charged to or paid for by the Contractor at prevailing rates charged to the Government or, where the utility

N4008025R9500 is produced by the Government, at reasonable rates determined by the Contracting Officer. The Contractor shall carefully conserve any utilities furnished without charge.

Record Shop Drawings: This seed project is subject to FAR 52.236-21 Specifications and Drawings for Construction.

Bond Requirements: In accordance with FAR 52.228-1 Bid Guarantee, each Offeror shall submit with its offer a guarantee bond (Standard Form 24) in a penal sum equal to at least 20 percent of the offer price or \$3,000,000, whichever is less. Pursuant to FAR 52.232-18, Availability of Funds, the Government's obligation under this solicitation, or any task order or contract that might result from the solicitation is entirely subject to, and contingent upon, the availability of appropriated funds. Should the Government be unable to award the seed project, the Government guarantees an award in the amount of \$10,000 to each successful Offeror upon award of the Multiple Award Construction Contracts. This minimum guarantee is over the full term of the contract, including option years. No legal liability on the part of the Government shall arise until funds are made available to the Contracting Officer and a task order or contract is awarded by the Contracting Officer.

Site Visit: Seed project site visit details to be provided under General Requirements under future amendment.

(End of Summary of Changes)